

25VECV05871 25VECV05871

County: los-angeles

Division: Civil Law and Motion

Department: B

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Case Number: 25VECV05871 Hearing Date: September 24, 2026 Dept: B

Tentative Ruling

Simon v. Nissan North America, Case
no. 25VECV05871

Hearing date September 24, 2026

Plaintiff

Simon's Motion to Compel Initial Disclosures – UNOPPOSED

Plaintiff

Simon sues defendant Nissan North America, alleging violations of the Song-Beverly Act and moves to compel initial required disclosures per Code Civ. Proc. §871.26 and for monetary sanctions. The motion is unopposed.

In

September 2024 the California Legislature enacted Assembly Bill No. 1755, amending the Code of Civil Procedure to establish streamlined procedures for Song-Beverly Act cases. Code Civ. Proc., § 871.20, et seq. These reforms aim to reduce court congestion and facilitate early resolution by mandating initial disclosures and requiring early mediation. Code Civ. Proc. §871.26(c). The statute requires early exchange of documents, initial depositions within 120 days of an answer and mediation within 150 days. Code Civ. Proc. §871.26(b)-(e). All other discovery is stayed, aside from the depositions and required disclosures, pending mediation. Id.

This

section applies to actions filed after 1/1/25. Code Civ. Proc. §871.26(l). This

matter was filed 10/14/25, so sec. 871.26 applies. 10/14/25 Compl. Pursuant to Code Civ. Proc. §871.26(b), “[w]ithin 60 days after the filing of the answer or other responsive pleading, all parties shall, without awaiting a discovery request, provide to all other parties an initial disclosure and documents pursuant to subdivisions (f), (g), and (h).” Defendant Nissan answered on 1/7/26, so disclosures were due 3/8/26. See 1/7/26 Answer.

Plaintiff’s

counsel emailed defense counsel regarding the disclosures due in this and 462 other matters. See Decl. Hill, para. 3, exh. 1. Defense counsel requested permission to produce disclosures on approximately 50 cases per month but failed to satisfy the proposed rate of production. Id., see also Mtn., 7:4-8. The motion is unopposed; defendant failed to show good cause or otherwise explain its failure. An order compelling production is mandatory.

“Unless

the party failing to comply with this section shows good cause, notwithstanding any other law and in addition to any other sanctions imposed pursuant to this chapter, a court shall impose sanctions as follows: ... [a] two-thousand-five-hundred-dollar (\$2,500) sanction against the defense attorney ..., paid within 15 business days for failure to comply with the document production requirements as prescribed in subdivision (b).” Code Civ. Proc. §871.26(j)(1). The motion is unopposed; defendant cannot show good cause. Sanctions of \$2,500 against defense counsel Sweeney are mandatory.

GRANTED;

mandatory disclosures are to be served within 15 days. Sanctions of \$2,500 to be paid within 15 court days.